Changes to legislation: As of 20 March 2022, this act is up to date with all changes known to be in force. There are changes that may be brought into force at a future date.



Number 14 *of* 2019

RESIDENTIAL TENANCIES (AMENDMENT) ACT 2019

REVISED

Updated to 9 July 2021

This Revised Act is an administrative consolidation of the *Residential Tenancies (Amendment) Act 2019*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Residential Tenancies (No. 2) Act 2021* (17/2021), enacted 9 July 2021, and all statutory instruments up to and including *Health Act 1947 (Section 31A - Temporary Restrictions) (Covid-19) (No. 2) (Amendment) (No. 6) Regulations 2021* (S.I. No. 341 of 2021), made 9 July 2021, were considered in the preparation of this Revised Act.

Disclaimer: While every care has been taken in the preparation of this Revised Act, the Law Reform Commission can assume no responsibility for and give no guarantees, undertakings or warranties concerning the accuracy, completeness or up to date nature of the information provided and does not accept any liability whatsoever arising from any errors or omissions. Please notify any errors, omissions and comments by email to revisedacts@lawreform.ie.

Number 14 *of* 2019

RESIDENTIAL TENANCIES (AMENDMENT) ACT 2019

REVISED

Updated to 9 July 2021

An Act to amend the Residential Tenancies Acts 2004 to 2016; to provide for powers to carry out investigations of landlords and impose administrative sanctions; to provide for offences in relation to non-compliance with rent increase restrictions in rent pressure zones; to increase the notice periods to be provided in the case of termination of a tenancy by a landlord; to provide for annual registration by landlords of tenancies and to amend the registration process; to provide for mandatory publication of determination orders by the Residential Tenancies Board; to provide that the letting of a house or part thereof for any period not exceeding 14 days in a rent pressure zone is a material change in the use of the house or part and for that purpose to amend the Planning and Development Act 2000; and to provide for related matters.

[24*th May*, 2019]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title, collective citation, construction and commencement

1. (1) This Act may be cited as the Residential Tenancies (Amendment) Act 2019.

(2) The Residential Tenancies Acts 2004 to 2016 and this Act (other than *section 38*) may be cited together as the Residential Tenancies Acts 2004 to 2019 and shall be construed together as one.

(3) The Planning and Development Acts 2000 to 2018 and *section 38* may be cited together as the Planning and Development Acts 2000 to 2019.

(4) This Act shall come into operation on such day or days as the Minister may by order or orders appoint either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Definitions

2. In this Act—

"Act of 2004" means the Residential Tenancies Act 2004;

"Minister" means Minister for Housing, Planning and Local Government.

PART 2

Amendment of Residential Tenancies Act 2004

Amendment of section 3 of Act of 2004

3. Section 3 of the Act of 2004 is amended—

(a) by the insertion of the following subsection after subsection (1):

"(1A) (a) Subject to subsection (7), this Act also applies to every dwelling (the subject of a tenancy created not earlier than one month after the commencement of *paragraph (a)* of *section 3* of the *Residential Tenancies (Amendment) Act 2019*) situated in a building, or part of a building, used for the sole purpose (subject to subparagraphs (i), (ii) and (iii)) of providing residential accommodation to students during academic term times under a tenancy—

(i) whether or not the building or part of the building concerned is used for any other purpose outside of those times,

(ii) whether or not any such students are permitted to reside there outside of those times, and

(iii) whether or not any person other than a student resides there, provided that the purpose of the person's residing there serves the first-mentioned purpose,

but does not include a dwelling in a building or part of a building used for the first-mentioned purpose where the landlord (other than a landlord who is not an individual) also resides in the building or part of the building concerned.

(b) This subsection is without prejudice to subsection (1) and accordingly this Act shall, by virtue of that subsection—

(i) continue to apply to any dwelling to which it applied immediately before the commencement of *section 3* of the *Residential Tenancies (Amendment) Act 2019* in the same manner as it applied to such dwelling before such commencement, and

(ii) apply to any dwelling—

(I) occupied by a student under a tenancy created on or after such commencement, and

(II) to which this Act would apply had *ssections 3* and *s5* of the *Residential Tenancies (Amendment) Act 2019* not been enacted,

in the same manner as it would apply to a dwelling referred to in subparagraph (i).

(c) The definition of 'dwelling' in section 4 shall apply for the purposes of this subsection as if 'residential unit (whether or not self-contained)' were substituted for 'self-contained residential unit'.

(d) In this subsection 'student' means a person registered as a student with a relevant provider (within the meaning of the Qualifications and Quality Assurance (Education and Training) Act 2012).",

and

before the relevant date, or, if an order is made by the Minister under section 24A(5) in respect of an area where the dwelling concerned is situate, before the date of the coming into operation of the order, then subsections (3) and (4) shall not apply to the new rent, referred to in section 22(2), stated in that notice in accordance with that section.",

and

(e) by the insertion of the following subsections after subsection (6):

"(6A) A person who fails to comply with the requirements of subsection (4) shall be guilty of an offence.

(6B) A person, who in purported compliance with subsection (5B), furnishes information to the Board which is false or misleading in a material respect knowing it to be so false or misleading or being reckless as to whether it is so false or misleading shall be guilty of an offence.

(6C) A person who fails to comply with the requirements of subsection (5B) shall be guilty of an offence.".

(2) The amendment of section 19 of the Act of 2004 under *paragraph (c)*, in so far as it inserts subsection (5A) of section 19, of *subsection (1)* shall not apply in respect of a tenancy of a dwelling where works required to effect a substantial change to the dwelling began prior to the commencement of *subsection (1)*.

Amendment of section 20 of Act of 2004

7. Section 20 of the Act of 2004 is amended—

(a) in subsection (5), by the substitution of "1 January 2022 and from that day" for "the day immediately before the fourth anniversary of the day on which section 25 of the Residential Tenancies (Amendment) Act 2015 came into operation and, on and from the first-mentioned day", and

(b) in subsection (6), by the substitution of "31 December 2021" for "the day immediately before the fourth anniversary of the day on which that section came into operation".

Amendment of section 24A of Act of 2004

8. (1) Section 24A of the Act of 2004 is amended—

(a) in subsection (4), by the substitution of the following paragraph for paragraph (b):

"(b) the average rent (determined by reference to the information specified in paragraph (a)) in the area in respect of the 3 months to which the most recent Rent Index quarterly report applies is—

(i) in the case of the county of Kildare, the county of Meath, the county of Wicklow or a local electoral area in any one of those counties, above the average rent in the State (other than the Dublin Area) specified in that report, or

(ii) in the case of any—

(I) other county or local electoral area, or

(II) any city, city and county or local electoral area situated in such city or city and county,

above the average rent in the State (other than the Greater Dublin Area) specified in that report.",

and

(b) in subsection (10), by the insertion of the following definitions:

" 'Dublin Area' means—

(a) the city of Dublin, and

(b) the counties of South Dublin, Fingal and Dún Laoghaire-Rathdown;

'Greater Dublin Area' means—

(a) the Dublin Area, and

(b) the counties of Kildare, Wicklow and Meath;".

(2) Notwithstanding subsection (5) of section 24A of the Act of 2004 or any order made thereunder, the period specified in any such order to be the period during which an area shall stand prescribed as a rent pressure zone shall expire on F1**[**31 December 2024**]**.

Amendment of section 24B of Act of 2004

9. Section 24B of the Act of 2004 is amended by the substitution of "during the period commencing on the relevant date and ending on 31 December 2021" for "from the relevant date for a period of 3 years".

Relevant area within meaning of Local Government Act 2019 deemed to be rent pressure zone

10. The Act of 2004 is amended by the insertion of the following section:

"Relevant area within meaning of Local Government Act 2019 deemed to be rent pressure zone

24BA. (1) For the purposes of section 24B, the administrative area of Cork City Council shall include the relevant area and, accordingly, the reference in that section to relevant date shall, in so far as that section applies to the relevant area, be construed as a reference to the transfer day.

(2) In this section—

'Act of 2019' means the Local Government Act 2019;

'relevant area' has the meaning assigned to it by the Act of 2019; and

'transfer day' has the meaning assigned to it by the Act of 2019.".

Amendment of section 32 of Act of 2004

11. Section 32 of the Act of 2004 is amended in subsection (1) by the substitution of "Schedule 1" for "The Schedule".

Amendment of section 34 of Act of 2004

12. (1) Section 34 of the Act of 2004 is amended, in paragraph (a), by—

(a) the deletion in subparagraph (i), of "and",

(b) the substitution of the following subparagraph for subparagraph (ii):

"(ii) the notice of termination cites as the reason for the termination the ground or grounds concerned and contains or is accompanied—

(I) in the case of paragraph 2, 5 or 6 of that Table, by the statement referred to in that paragraph, and

(II) in the case of paragraph 3 or 4 of that Table, by the statutory declaration referred to in that paragraph,

and",

and

(c) the insertion of the following subparagraph:

"(iii) in the case of a notice of termination that cites as the reason for the termination the ground specified in paragraph 5, the notice of termination contains or is accompanied by a certificate in writing of a registered professional (within the meaning of the Building Control Act 2007) stating that—

(I) the proposed refurbishment or renovation works would pose a risk to the health or safety of the occupants of the dwelling concerned and should not proceed while the dwelling is occupied, and

(II) such a risk is likely to exist for such period as is specified in the certificate which shall not be less than 3 weeks,".

(2) The Table to section 34 of the Act of 2004 is amended—

(a) in paragraph 3, by the substitution of "9 months" for "3 months",

(b) in clause (i) of subparagraph (b) of paragraph 4, by the substitution of "12 months" for "6 months",

(c) in subparagraph (b) of paragraph 5, by the substitution of the following clause for clause (i):

"(i) the dwelling becomes available for reletting by reason of the completion of the works of refurbishment or renovation, and",

and

(d) in clause (i) of subparagraph (b) of paragraph 6, by the substitution of "12 months" for "6 months".

Amendment of section 35 of Act of 2004

13. Section 35 of the Act of 2004 is amended—

(a) in subsection (5), by—

(i) the substitution of "paragraph (aa) of subsection (8) and paragraph 4(b), 5(b) and 6(b) of the Table" for "paragraph 4(b), 5(b) and 6(b) of the Table", and

(ii) the insertion of "statutory declaration or" before "statement concerned",